

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 02/06/2026

ALL APPEARANCES WILL BE BY ZOOM

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).) CourtCall will **NOT** be used by D32. Zoom is approved for all hearings except Issue Conferences and Trials.

Dept. 32's telephone number is: (925) 608-1132.

NOTE: In order to minimize the risk of miscommunication, Dept. 32 prefers and encourages email notification to the department of the request to argue and specification of issues to be argued.

Dept. 32's email address is: dept32@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvvmR75t9Q2H5zOgagi9rbG4xeTUM.1>

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C24-00779
CASE NAME: MOORE OKEH VS. HARDEEP SINGH
*HEARING ON MOTION IN RE: LEAVE TO FILE 2ND AMENDED COMPLAINT
FILED BY: OKEH, MOORE N.
TENTATIVE RULING:

Before the Court is Plaintiffs Moore N. Okey and Irene London Motion for Leave to File a Second Amended Complaint. The Motion is **denied** as set forth below.

Procedural Background

Plaintiffs filed their initial complaint on April 3, 2024. On November 13, 2024, Defendant U.S. Bank National Association (“U.S. Bank”) filed a motion to compel arbitration. The hearing for the motion was set for March 21, 2025. As such, any opposition would be due on or before March 10, 2025.

In late February, the parties submitted a joint stipulation to continue the hearing date until April 21, 2025 “or as soon as the Court is available thereafter.” The Court signed the stipulation on March 3 resetting the hearing date for May 2, 2025. The stipulation was entered on the docket on March 10, 2025.

Plaintiff never filed an opposition to the motion to compel arbitration. As such, on May 1, 2025, the Court posted the tentative ruling indicating that the “unopposed motion to compel arbitration is granted.” Plaintiff did not contest the tentative ruling. Accordingly, the Court issued a minute order on May 2 confirming the tentative ruling as its final order.

Over four months later, on September 15, 2025, Plaintiffs filed a motion to set aside the order compelling arbitration. The hearing on that motion was set for January 16, 2026. Defendants timely opposed the motion, and Plaintiffs never filed a reply. On January 15, the Court issued its tentative ruling denying Plaintiff’s motion. Plaintiff did not appear to contest the tentative ruling. As such, the Court adopted its tentative as the Order of the Court – denying Plaintiffs’ motion so set aside the order compelling arbitration.

Accordingly, this matter is currently ordered to arbitration.

Analysis

“Once a trial court has compelled claims to contractual arbitration, the court has ‘very limited authority with respect to [the] pending arbitration.’” (*Lew-Williams v. Petrosian* (2024) 101 Cal.App.5th 97, 105, citations omitted.) Once a motion to compel is granted and the matter stayed, “the action at law sits in the twilight zone of abatement with the trial court retaining merely vestigial jurisdiction over matters submitted to arbitration.” (*Titan/Value Equities Group Inc. v. Superior Court* (1994) 29 Cal.App.4th 482, 487.)

“During that time, under its ‘vestigial’ jurisdiction, a court may: appoint arbitrators if the method selected by the parties fails (§ 1281.6); grant a provisional remedy ‘but only upon the ground that the award to which an applicant may be entitled may be rendered ineffectual without provisional relief ‘ (§ 1281.8, subd. (b)); and confirm, correct or vacate the arbitration award (§ 1285).” (*Ibid.*) “Absent an

agreement to withdraw the controversy from arbitration, however, ***no other judicial act is authorized.***” (*Ibid.* emphasis added.)

While the motion for leave to amend is unopposed, the Court is without jurisdiction to rule on the motion as the matter has been ordered to arbitration. Plaintiffs attempted to have that order set aside, but that motion was denied.

Conclusion

Plaintiffs’ motion is **denied** as this matter has been ordered to proceed in arbitration.

2. 9:00 AM CASE NUMBER: C24-00779
CASE NAME: MOORE OKEH VS. HARDEEP SINGH
*HEARING ON MOTION IN RE: EXPUNGE LIS PENDENS
FILED BY: SINGH, HARDEEP
TENTATIVE RULING:

Before the Court is Plaintiffs Moore N. Okey and Irene London’s Motion to Expunge Lis Pendens.

The Court continues the hearing on this motion to **March 6, 2026**, to allow for additional briefing by the parties as to whether the Court has jurisdiction to hear this matter, as outlined below.

Procedural Background

Plaintiffs filed their initial complaint on April 3, 2024. On November 13, 2024, Defendant U.S. Bank National Association (“U.S. Bank”) filed a motion to compel arbitration. On May 2, 2025, the Court issued a minute order granting the motion to compel.

Thereafter, on May 28, 2025, Plaintiff filed a Notice of Lis Pendens. Defendant Hardeep Singh filed the instant motion to expunge the lis pendens on October 2, 2025. The Court set the hearing on the motion for February 6, 2026. Plaintiffs filed their opposition on January 22. Defendant Singh filed his Reply on January 26, 2026.

Analysis

The Court notes that the Parties papers only address the substantive aspects of the motion to expunge. Neither party discusses the impact of the order compelling arbitration or the Court’s jurisdiction to hear this motion based on that order.

Initially, it appears that a motion to expunge a lis pendens can only be heard by the Court and not the arbitrator. First, a “lis pendens may only be recorded when an action is pending in state or federal court.” (*Manhattan Loft, LLC v. Mercury Liquors, Inc.* (2009) 173 Cal.App.4th 1040, 1051 citations omitted.) To obtain an expungement order, “any time after notice of pendency of action has been recorded, any party ... may apply **to the court** in which the action is pending to expunge the notice.” (Cal. Code Civ. Proc. § 405.30 emphasis added.) The motion to expunge is “confine[d] ... **to the court** where ‘the action’ of which notice has been recorded is pending” (*The Formula Inc. v. Superior*